

**MECHANISM FOR BLACKLISTING AND DEBARMENT OF SUPPLIERS AND
CONTRACTORS UNDER RULE 19, PUBLIC PROCUREMENT RULES, 2004**

1. The National Telecommunication Corporation ("NTC") hereby sets out its mechanism for blacklisting and debarment of suppliers and contractors ("Blacklisting Mechanism") in accordance with Rule 19, Public Procurement Rules, 2004 ("PPRA Rules").
2. NTC may blacklist/debar contractors or suppliers for the periods set out in Rule 19, PPRA Rules at any stage of the procurement process, any stage of contract implementation/period of the contract, or upon termination of the contract.
3. NTC may blacklist/debar a contractor or supplier if, after being afforded an opportunity of hearing, NTC finds that a contractor or supplier:
 - (i) is engaged in corrupt and fraudulent practices as defined under Rule 2(f) of the PPRA Rules, or
 - (ii) is incapable due to its established performance failure during the execution of the contract, or
 - (iii) deviates from its prior commitment or declaration made in its bid or proposal.
4. On the direction of the Managing Director, NTC, ("MD") the Director Procurement, NTC ("DP") shall initiate blacklisting/debarment proceedings by issuing a contractor or supplier with a show cause notice ("SCN") which sets out the *prima facie* case against the contractor or supplier under clause 3 of the Blacklisting Mechanism and calls upon a contractor or supplier to show cause as to why it should not be blacklisted. A copy of the Blacklisting Mechanism shall be appended to the SCN.

5. The SCN shall provide the contractor or supplier with ten (10) days ("Notice Period") from the date of the SCN to submit its reply to the SCN. The reply to the SCN should include all documents that the contractor or supplier seeks to rely on in proving its case against the contents of the SCN. Upon receipt of the reply to the SCN or the expiry of the Notice Period, whichever is earlier, the MD shall either direct the DP to withdraw the SCN or direct the DP to issue a notice of personal hearing to the contractor or supplier.
6. A contractor or supplier may nominate any of its officers/employees to attend the personal hearing and represent the contractor or supplier. A contractor or supplier shall not be represented by an Advocate as defined in the Legal Practitioners and Bar Councils Act, 1973. The personal hearing shall be conducted by a committee nominated by the MD on case to case basis consisting of three (3) officers of NTC ("Committee"). The MD may at his discretion nominate different Committees for different kinds of procurements, different regional offices of NTC, or on the basis of any other criteria at his discretion. There shall be a single opportunity for the personal hearing and a contractor or supplier may not seek adjournment on any ground. However, a Committee may postpone or adjourn hearings at its discretion.
7. After conclusion of the personal hearing as provided at clause 6, the Committee shall, after obtaining the approval of the MD, issue a detailed decision in writing in accordance with Rule 19(2), PPRA Rules. If a contractor or supplier fails to attend the personal hearing, the Committee shall, after obtaining the approval of the MD, issue a detailed decision in writing in accordance with Rule 19(2), PPRA Rules on the basis of the available record.
8. The Managing Director may, only on his own motion and after obtaining approval from the Public Procurement Regulatory Authority, delist a contractor or supplier that NTC has blacklisted/debarred prior to the completion of its blacklisting/debarment period.
9. The Blacklisting Mechanism may be amended by NTC from time to time.